

Suncast Corporation v. Keter US Inc.

U.S. Patent No. 12,680,293, titled 'Cabana bar shed with folding bar surface,' claims a knock-down shed with a cabana opening, upward-opening cover panel, folding bar surface, hinge-and-slot support mechanism, load-transfer structure, latch, and specified resin-panel constructions. Keter's official public materials identify a Signature 9x7 Outdoor Bar Shed and provide its assembly instructions.

Independent preliminary research based on public information.

FILED	FORUM	DOCKET	MATTER
2026-08-25	S.D. Fla.	9:26-cv-81058	Patent Infringement

Prepared 2026-08-25. No attorney or expert contacted. Availability, interest, compensation, and conflicts not checked.

Public filing, likely recipient, and technical frame

CAPTION	Suncast Corporation v. Keter US Inc.
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FORUM / DOCKET	S.D. Fla. / 9:26-cv-81058
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FILED / TYPE	2026-08-25 / patent infringement
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PUBLIC DOCKET	Open docket
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VERIFIED PUBLIC RECORD

The public RECAP docket identifies Suncast Corporation as plaintiff and Keter US Inc. as defendant, verifies filing on August 25, 2026 in the Southern District of Florida under docket 9:26-cv-81058, and identifies the complaint as a patent-infringement pleading concerning U.S. Patent No. 12,680,293. The docket identifies Edward Fortune McHale and Andrew David Lockton as counsel for Suncast.

LIKELY RESEARCH PURCHASER

Edward F. McHale - Outside counsel for Suncast Corporation; partner and senior litigation attorney, McHale & Slavin, P.A.. The exact public docket identifies McHale as counsel for Suncast. His firm identifies him as a partner and senior litigation attorney. Selecting him as the likely research purchaser is an analytical inference from that role; Andrew D. Lockton is a second verified matter-linked recipient.

emchale@mchaleslavin.com - publicly printed in the [linked professional source](#); not inferred.

TECHNICAL FRAME

U.S. Patent No. 12,680,293, titled 'Cabana bar shed with folding bar surface,' claims a knock-down shed with a cabana opening, upward-opening cover panel, folding bar surface, hinge-and-slot support mechanism, load-transfer structure, latch, and specified resin-panel constructions. Keter's official public materials identify a Signature 9x7 Outdoor Bar Shed and provide its assembly instructions.

Secondary-source limitation: The public docket and patent establish the asserted matter and claimed architecture, and Keter's public manual identifies the referenced product. This packet does not treat a public assembly drawing as proof of every claim limitation. The filed complaint, asserted claims as issued, accused-product specimens, CAD, tooling and manufacturing records, and discovery must control any infringement or validity opinion. [Open public synopsis](#)

REPORTED ASSERTED PATENTS

[U.S. Patent No. 12,680,293](#)

Questions likely to require expert input

This issue map is a research plan, not a legal conclusion. The filed complaint, patent exhibits, intrinsic record, and discovery must control.

01 Does the Keter Signature 9x7 Outdoor Bar Shed contain the complete claimed shed-and-opening arrangement?

Claim 1 requires floor, wall, and roof panels, overlapping adjacent wall-panel edges, a cabana opening created by shorter wall panels, an upward-opening cover panel, and a bar surface at the opening. A product-level mapping should identify the physical component corresponding to each limitation and distinguish ordinary shed structure from the claimed combination.

Potential evidence: Filed complaint and claim chart; complete Keter assembly manual and bill of materials; purchased specimen and inspection; CAD drawings, revision history, and component identifiers

02 What is the accused cover panel's construction, reinforcement, and operating geometry?

Claim 1 requires a hollow cover panel with an outer wall and integrally formed reinforcements that provide sufficient rigidity for upward lifting from its bottom surface. Claims 10-15 add rotation about the top edge and alternative resin, blow-molded, tack-off, rib, gusset, and injection-molded constructions.

Potential evidence: Non-destructive imaging and section measurements; resin identification; mold and process records; rib, gusset, tack-off, perimeter-weld, and hinge geometry; stiffness and lifting tests

03 How does the folding bar move, support load, and store behind the closed cover?

Claims 2-7 require movement between horizontal and vertical positions, a support assembly with fixed and sliding hinge pins, a gusset rod, an elongated slot limiting travel, a support arm, and a torque arm that transfers load to wall or floor panels. Kinematic and structural testing should determine whether the accused mechanism operates in that claimed sequence and load path.

Potential evidence: Disassembly and dimensional inspection; motion capture and force measurements; hinge-pin and slot tolerances; finite-element analysis; static and cyclic bar-load testing

04 Does the accused bar lock mechanically restrain the claimed sliding hinge pin?

Claims 8 and 9 require a lock that latches the bar horizontally and a lever that mechanically engages the sliding hinge pin to prevent travel along the elongated slot. A general latch or support brace is not necessarily the claimed lever-pin interaction.

Potential evidence: Close inspection and annotated photographs; operation under load; part drawings and supplier specifications; force and failure-mode testing

Questions likely to require expert input

05 Which claim terms require technical construction and what would they mean to a skilled artisan?

Potentially disputed terms include 'hollow,' 'integrally formed reinforcements,' 'fixed hinge pin,' 'sliding hinge pin,' 'gusset rod,' 'torque arm,' 'tack off,' 'single layer hollow structure,' and 'constructed and arranged.' Their meaning should be grounded in the intrinsic record and contemporaneous plastics and mechanical-design usage.

Potential evidence: Issued patent, application publication, prosecution history, cited references, plastics-processing texts, mechanical-design handbooks, and skilled-artisan declarations

06 What manufacturing process produced each accused panel and can process-by-product inferences be made reliably?

The claims distinguish blow molding with perimeter connection and internal tack-offs from injection molding with ribs and gussets. Surface appearance alone may not establish process. Tooling marks, wall-thickness distribution, pinch-off features, weld lines, gate evidence, and supplier records may be needed.

Potential evidence: Manufacturing drawings and process specifications; mold/tooling files; microscopy, ultrasound or CT; wall-thickness mapping; resin and fracture-surface analysis

07 What pre-September 20, 2023 public art disclosed folding service windows, bar surfaces, slot-and-pin braces, and molded-panel sheds?

Validity may turn on whether the claimed combination, not isolated components, was anticipated or obvious. The search should cover sheds, concession windows, outdoor bars, fold-down shelves, hatch supports, knock-down structures, and blow- or injection-molded building panels.

Potential evidence: Patents and published applications; product manuals and catalogs; archived web pages; standards and design texts; dated specimens; element-by-element prior-art charts

08 Which product versions, alternative configurations, and design-around options matter?

The accused product's design, materials, suppliers, and assembly may have changed. Expert work should identify relevant versions and test whether nonaccused configurations omit a claimed hinge, slot, lever, load path, or panel construction without compromising function.

Potential evidence: SKU and date-code history; engineering change orders; supplier and tooling records; archived manuals; comparison specimens; controlled design-around analysis

Candidates 1-2 for further diligence

Ranked for preliminary research priority based on subject-matter fit, relevant public work, testimony, and visible diligence burden. This is not a retention recommendation.

01 David O. Kazmer

Professor of Plastics Engineering, University of Massachusetts Lowell

TECHNICAL FIT

Exceptional fit across plastics product and process design, injection molding, blow molding, thermoforming, mechanical design, stress analysis, assembly, tolerances, testing, and failure analysis. He can bridge claimed panel construction with product-level mechanics.

RELEVANT WORK

UMass Lowell identifies him as a named inventor on more than 20 patents and author of two books, ten book chapters, and more than 300 publications. His profile lists prior engineering and management roles at GE Research and Development, GE Plastics, and Synventive Molding Solutions.

PUBLIC LITIGATION EXPERIENCE

No candidate-specific expert report, declaration, deposition, or trial-testimony source was located in the public sources reviewed.

POINTS FOR FURTHER DILIGENCE

His breadth is strongest for plastics manufacturing and integrated product-process design, not shed-specific building-code practice. University and prior industry relationships require conflict diligence.

[Source 1](#) | [Source 2](#)

[Draft email](#) | David_Kazmer@uml.edu | [public email source](#)

02 Robert A. Malloy

Professor Emeritus and former Chair of Plastics Engineering, University of Massachusetts Lowell

TECHNICAL FIT

Direct fit for plastic part and product design, injection molding, mold design, thermoplastic additives, processing, and failure-sensitive design. His textbook-level product-design background is especially relevant to ribs, gussets, wall sections, hinges, and molded load paths.

RELEVANT WORK

UMass Lowell describes him as an active researcher and consultant, author of many publications and patents including a textbook on plastic part design, former chair of the Society of Plastics Engineers Injection Molding Division, SPE Fellow, and Plastics Hall of Fame member.

PUBLIC LITIGATION EXPERIENCE

No candidate-specific expert report, declaration, deposition, or trial-testimony source was located in the public sources reviewed.

POINTS FOR FURTHER DILIGENCE

Emeritus status and current capacity require confirmation. His public profile does not establish knowledge of the specific Keter or Suncast products.

[Source 1](#) | [Source 2](#)

[Draft email](#) | robert_malloy@uml.edu | [public email source](#)

Candidates 3-4 for further diligence

03 Tim A. Osswald

Professor of Mechanical Engineering and Co-Director, Polymer Engineering Center, University of Wisconsin-Madison

TECHNICAL FIT

Strong fit for plastics technology, polymer processing, injection molding, engineering design with polymers, part behavior, and failure prediction. He is well suited to the panel-manufacturing and structural-rigidity questions.

RELEVANT WORK

UW-Madison identifies him as author of 12 polymer-engineering books and more than 300 technical papers, with expertise in polymer processing, composites, manufacturing, and design with polymers. His books include the Injection Molding Handbook.

PUBLIC LITIGATION EXPERIENCE

No candidate-specific expert report, declaration, deposition, or trial-testimony source was located in the public sources reviewed.

POINTS FOR FURTHER DILIGENCE

His public record emphasizes polymer engineering broadly rather than folding mechanisms or outdoor-shed certification. Polymer Engineering Center industry relationships require conflict review.

[Source 1](#) | [Source 2](#)

[Draft email](#) | tosswald@wisc.edu | [public email source](#)

04 Lih-Sheng Turng

Consolidated Papers Foundation Professor and Co-Director, Polymer Engineering Center, University of Wisconsin-Madison

TECHNICAL FIT

Excellent fit for injection molding, innovative plastics manufacturing, computer-aided engineering, material characterization, process simulation, and design optimization. His industry background in injection-molding simulation adds manufacturing realism.

RELEVANT WORK

UW-Madison reports more than 330 refereed journal papers, over 250 conference papers, 24 patents and applications, ten years developing injection-molding simulation software in industry, and extensive work on injection molding and process control.

PUBLIC LITIGATION EXPERIENCE

No candidate-specific expert report, declaration, deposition, or trial-testimony source was located in the public sources reviewed.

POINTS FOR FURTHER DILIGENCE

His strongest fit is molding and simulation rather than bar-support kinematics or building-envelope performance. Extensive industrial sponsorships require conflict diligence.

[Source 1](#) | [Source 2](#)

[Draft email](#) | turng@engr.wisc.edu | [public email source](#)

Candidates 5-6 for further diligence

05 Stephen P. Johnston

Professor of Plastics Engineering, University of Massachusetts Lowell

TECHNICAL FIT

Direct fit for part design, mold design, injection molding, finite-element analysis, process control, and design for manufacturability. He can evaluate whether ribs, gussets, and wall geometry plausibly produce the claimed rigidity and load transfer.

RELEVANT WORK

UMass Lowell reports industrial experience with Moldflow, Bausch & Lomb, and Lord; more than 40 articles and proceedings; three patents; and teaching in product design, mold design, advanced mold design, and injection molding.

PUBLIC LITIGATION EXPERIENCE

No candidate-specific expert report, declaration, deposition, or trial-testimony source was located in the public sources reviewed.

POINTS FOR FURTHER DILIGENCE

His public work is injection-molding centered, while some claims require blow-molding and tack-off analysis. Sponsored projects and industrial teaching relationships require conflict review.

[Source 1](#) | [Source 2](#)

[Draft email](#) | Stephen_Johnston@uml.edu | [public email source](#)

06 Carol M. F. Barry

Professor of Plastics Engineering, University of Massachusetts Lowell

TECHNICAL FIT

Strong fit for extrusion, injection molding, blow molding, thermoforming, polymer nanomanufacturing, and process-property relationships. Blow-molding expertise is directly relevant to the hollow panel, perimeter connection, and tack-off limitations.

RELEVANT WORK

UMass Lowell identifies her expertise in plastics processing and advanced manufacturing, including injection molding, blow molding, thermoforming, extrusion, polymer forming, and microstructured molded surfaces.

PUBLIC LITIGATION EXPERIENCE

No candidate-specific expert report, declaration, deposition, or trial-testimony source was located in the public sources reviewed.

POINTS FOR FURTHER DILIGENCE

Her profile is strongest on processing science, not hinge kinematics, bar-load testing, or shed weather performance. Institutional and industry relationships require conflict review.

[Source 1](#) | [Source 2](#)

[Draft email](#) | Carol_Barry@uml.edu | [public email source](#)

Candidates 7-8 for further diligence

07 Alireza Vakil Amirkhizi

Professor of Mechanical and Industrial Engineering, University of Massachusetts Lowell

TECHNICAL FIT

Strong fit for mechanics of materials, composite and polymeric structures, structural response, and testing under mechanical and environmental loads. He can complement plastics processors on cover-panel rigidity, bar-load paths, and failure modes.

RELEVANT WORK

His UMass Lowell profile lists applied mechanics, mechanics of materials, composites and structures, structure-property relations, dynamic characterization, and polymeric-material design, with sponsored work on polymer and composite performance.

PUBLIC LITIGATION EXPERIENCE

No candidate-specific expert report, declaration, deposition, or trial-testimony source was located in the public sources reviewed.

POINTS FOR FURTHER DILIGENCE

He is not primarily a blow- or injection-molding process specialist. His work often addresses extreme conditions rather than consumer-shed service loads.

[Source 1](#) | [Source 2](#)

[Draft email](#) | alireza_amirkhizi@uml.edu | [public email source](#)

08 Davide Masato

Associate Professor of Plastics Engineering, University of Massachusetts Lowell

TECHNICAL FIT

Strong fit for plastic product design, mold engineering, injection molding, process simulation, instrumentation, control, and sustainable manufacturing. He can support measured comparisons between design drawings and molded specimens.

RELEVANT WORK

UMass Lowell reports more than 45 journal publications, over 50 conference presentations, three patents, teaching in engineering design and injection mold design, and research funded by NASA, the U.S. Army, DOE-related programs, and industry.

PUBLIC LITIGATION EXPERIENCE

No candidate-specific expert report, declaration, deposition, or trial-testimony source was located in the public sources reviewed.

POINTS FOR FURTHER DILIGENCE

His public work emphasizes injection and micro-injection molding more than large blow-molded panels. He is a comparatively younger candidate than the senior specialists ranked above.

[Source 1](#) | [Source 2](#)

[Draft email](#) | Davide_Masato@uml.edu | [public email source](#)

Candidates 9-10 for further diligence

09 John Vlachopoulos

Professor Emeritus of Chemical Engineering, McMaster University; founder, Polydynamics Inc.

TECHNICAL FIT

Deep fit for polymer processing and rheology across injection molding, extrusion, thermoforming, rotational molding, flow simulation, and industrial troubleshooting. He is particularly useful for process identification and manufacturing feasibility.

RELEVANT WORK

McMaster reports 140 peer-reviewed papers, more than 100 conference publications, 19 book chapters, a textbook, co-editorship of the SPE Guide on Extrusion Technology and Troubleshooting, and polymer-processing software licensed to more than 500 corporations in 30 countries.

PUBLIC LITIGATION EXPERIENCE

No candidate-specific expert report, declaration, deposition, or trial-testimony source was located in the public sources reviewed. His profile reports consulting to several hundred corporations.

POINTS FOR FURTHER DILIGENCE

His expertise is broader polymer processing and rheology rather than this product's exact blow-molded shed architecture. Canadian location and emeritus status may affect logistics.

[Source 1](#) | [Source 2](#)

[Draft email](#) | vlachopj@mcmaster.ca | [public email source](#)

10 Pavana Prabhakar

Charles G. Salmon Associate Professor of Civil and Environmental Engineering and Mechanical Engineering, University of Wisconsin-Madison

TECHNICAL FIT

Strong complementary fit for mechanics, failure, durability, moisture exposure, advanced manufacturing, and architected polymer composites. She can address whether the claimed reinforcements and load paths provide structural performance under outdoor conditions.

RELEVANT WORK

UW-Madison identifies her research in damage-tolerant lightweight composites, multi-physics environments including moisture and temperature, mechanics-based design, manufacturing, structural parts, and polymer-composite failure and life prediction.

PUBLIC LITIGATION EXPERIENCE

No candidate-specific expert report, declaration, deposition, or trial-testimony source was located in the public sources reviewed.

POINTS FOR FURTHER DILIGENCE

Her work emphasizes advanced composites rather than commodity-resin shed panels and molding-tool practice. She would complement, not replace, a molding specialist.

[Source 1](#) | [Source 2](#)

[Draft email](#) | pavana.prabhakar@wisc.edu | [public email source](#)

Preliminary candidates; no conflicts or availability determination

- Run party, affiliate, counsel, inventor, funder, and technology conflicts.
- Confirm testimony history, exclusions, compensation, publications, patents, and deposition performance.
- Investigate licensing, grants, consulting, commercial interests, and prior technical positions.
- Confirm role fit, availability, and interest only after counsel authorizes outreach.

ONGOING MATTER-SPECIFIC RESEARCH

Flint Witness Research works in the post-filing window, turning pleadings and public technical records into issue maps, researched candidate slates, and diligence starting points as the case develops.

[Schedule a 15-minute conversation](#)

CORE SOURCES

Public docket: <https://www.courtlistener.com/docket/74698050/suncast-corporation-v-keter-us-inc/>

Public professional email source: https://www.supremecourt.gov/DocketPDF/20/20-915/193973/20210928154630647_20-915%20bsac%20Lockton.pdf

Public technical context source: <https://patents.google.com/patent/US20250092666A1/en>

LIMITATIONS

The public docket and patent establish the asserted matter and claimed architecture, and Keter's public manual identifies the referenced product. This packet does not treat a public assembly drawing as proof of every claim limitation. The filed complaint, asserted claims as issued, accused-product specimens, CAD, tooling and manufacturing records, and discovery must control any infringement or validity opinion.

No attorney or expert was contacted. Availability, interest, compensation, and conflicts were not checked.